

26VECV04291 26VECV04291

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-07-30

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Case Number: 26VECV04291 Hearing Date: July 30, 2026 Dept: T

26VECV04291 Dermenjian v Shopping Service

Tentative ruling

Ex parte application for temporary restraining order pending hearing on Preliminary Injunction: Denied without prejudice. The complaint was filed on 7/23/2026 and has not been served. At this time, the court does not yet have jurisdiction over the defendants. Furthermore, there was a delay in filing this request for TRO in light of the fact that plaintiff waited until all of the work was completed before coming in and asking it to be removed, versus coming in at the start of construction to stop the process. The plywood wall did not appear overnight, nor did the metal bars. Indeed, defendant appears to have advised plaintiff in September 2025 that he would build a wall around Plaintiff's Property unless a new lease was signed. None of this is an emergency. Furthermore, there is no evidence of irreparable harm as the potential damages are merely business financial losses which can be recouped if plaintiff prevails in the case.

As stated in the Complaint, Paragraph 25, lines 4-11. "Starting in approximately September 2025, Kashani of SSC notified Plaintiffs orally and in writing that neither Plaintiffs, nor their tenants and their tenants' customers, had parking rights anywhere in the parking lot of the Center under the 1950 CC&Rs or otherwise. Kashani told Plaintiffs orally and in writing that he and/or SSC would build a wall around Plaintiffs Property, blocking access to the Center's parking lot, unless Plaintiffs signed a "month-to-month parking lease" with rent for parking spaces in the amount of \$9,450 per quarter (\$3,150 per month), which represents an increase of approximately 300% more than Plaintiffs had ever been charged under the parking rate provisions of the CC&Rs during the prior 43 years." (Emphasis added.)